

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

INTERIM STATUS UPDATE

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY” or “Complainant”) by counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102 and the Presiding Officer’s August 23, 2023, Revised Scheduling Order (FMC Docket No. 28) hereby files this Interim Status Update.

The Parties are mindful of the Revised Scheduling Order, and have been working together since the week of October 30, 2023, on a joint submission to the Presiding Officer containing a summary of discovery efforts to date and requests for additional time to complete discovery. The parties are continuing to negotiate the details of such a submission, which they will endeavor to file by November 10, 2023, either jointly or separately.

Dated: November 8, 2023

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of those documents to their counsel of record listed below:

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Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited.

Dated: November 8, 2023



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